



File No.: EXP202315516

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 18, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights of file number EXP202105284, followed against DENTAL REY-GAR, S.L. (hereinafter, the respondent).

In said file, it is recorded that the complainant exercised their right of access to the personal data concerning them, without said request being duly addressed, issuing a resolution requiring the following:

“FIRST: TO GRANT the claim made by A.A.A. and to urge CLÍNICA DENTAL REYGAR, S.L., with NIF B86753506, to, within ten working days following the notification of this resolution, send to the complainant a certification addressing the exercised right of access or to deny it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution.

The actions carried out as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in article 72.1.m) of the LOPDGDD, which will be sanctioned, in accordance with article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights, in which a period of ten working days was granted to the respondent for addressing the exercise of the right of access, was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, not being collected by the responsible party within the period of availability, as recorded in the acknowledgment of receipt in the file, and therefore understood to have been carried out in accordance with the provisions of articles 43.2 and 41.5 of the LPACAP on April 29, 2022.

THIRD: After the period granted for the required actions in said resolution had elapsed and having received a letter from the complainant, registered on June 27, 2022, with registration number REGAGE22e00026585040, requesting compliance, on June 29, 2022, with registration number REGAGE22s00027007930, a requirement was sent to the respondent to, within five working days, send to the complainant a certification of compliance with the indicated resolution and, within ten working days, notify this Agency of the measures adopted.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/7

The notification of said requirement was not collected by the responsible party within the deadline for availability, as stated in the acknowledgment of receipt in the file, thus being understood as carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on July 10, 2022.

FOURTH: On September 23, 2022, with entry registration number REGAGE22e00041873153, the claiming party informs this Agency that the claimed party continues to fail to comply with the resolution of the rights exercise procedure.

FIFTH: Although the notification of the resolution of the rights exercise procedure was validly carried out by electronic means, being considered as completed in accordance with the provisions of Article 41.5 of the LPACAP, on March 14, 2023, a copy of the resolution was sent by postal mail for informational purposes, which was returned to the sender by Correos as unknown on March 28, 2023, as stated in the acknowledgment of receipt in the file, despite having been sent to the tax address of the claimed party, provided by the State Agency for Tax Administration.

SIXTH: The claimed party was required again on four occasions to send the claiming party a

certification of compliance with the indicated resolution within five business days and to notify this Agency of the measures adopted within ten business days, in accordance with what was agreed in the aforementioned Resolution. In these requirements, a copy of the resolution of the rights exercise procedure of file number EXP202105284 was attached.

The first of these requirements, sent to the tax address of the claimed party, provided by the State Agency for Tax Administration, was returned to the sender as unknown by Correos on April 25, 2023, according to the acknowledgment of receipt in the file.

The second requirement, sent to the address of the claimed party appearing in the documentation provided by the claiming party, was returned to the sender by Correos on May 19, 2023, due to Surplus (not collected at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

The third requirement was sent by electronic means, not being collected by the responsible party within the deadline for availability, as stated in the acknowledgment of receipt in the file, and thus being understood as carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on September 15, 2023.

The fourth requirement, sent to the address provided by the claiming party, was returned to the sender by Correos on October 13, 2023, due to Surplus (not collected at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

SEVENTH: With an outgoing registration date of October 26, 2023, and registration number REGAGE23s00072368831, as a supplement to the previous notifications, a new communication of the compliance requirement is sent to the claimed party.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

the cited Resolution to its fiscal address by ordinary postal mail, to be deposited in its mailbox.

EIGHTH: After the period of the initial resolution and the subsequent requests has elapsed, the party being claimed has not sent any response to this Agency that proves it has addressed the exercised right of access or that it has denied it with justification, indicating the reasons why the request should not be granted.

NINTH: No ordinary administrative appeal can be made against the cited resolution due to the expiration of the established deadlines for such. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

TENTH: According to the report obtained from the AXESOR tool, the entity DENTAL REY-GAR, S.L. is a company established in 2013 with a business volume of ***AMOUNT.1 euros in the year 2020.

ELEVENTH: On November 17, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the party being claimed for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

The aforementioned initiation agreement was notified to the party being claimed, in accordance with the rules established in the LPACAP, through an announcement published in the Official State Gazette dated January 2, 2024, after two unsuccessful attempts at postal notification to its fiscal address, as evidenced in the file.

TWELFTH: Once the cited initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the party being claimed was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the

infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the party being claimed has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the cited initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven,

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/7

PROVEN FACTS

FIRST: The resolution of the procedure for the exercise of rights and the requests for compliance indicated in the first, second, third, fifth, sixth, and seventh antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and executable due to the expiration of the deadlines established for filing the appeals indicated therein.

SECOND: The party being claimed has not sent any response to this Agency that proves compliance with the resolution.

THIRD: The initiation agreement of this sanctioning procedure was notified to the party being claimed, in accordance with the provisions of Article 44 of the LPACAP, through an announcement published in the Official State Gazette dated January 2, 2024, after two unsuccessful delivery attempts at its fiscal address.

This Agency has consulted the address of the party being claimed in the Commercial Registry and in the Tax Agency, coinciding with the postal address to which the attempts to notify the initiation agreement were made, prior to the publication in the BOE.

FOURTH: The party being claimed has not submitted any allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In accordance with the evidence available, it is considered that the party being claimed has failed to comply with the resolution of the Spanish Agency for Data Protection.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/7

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the respondent party, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame;”

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

“Failure to comply with the decisions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount.”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“m) Failure to comply with the decisions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent party for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of Measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

This Agency agrees to impose on the controller the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on DENTAL REY-GAR, S.L., with NIF B86753506, for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO REQUIRE DENTAL REY-GAR, S.L., with NIF B86753506, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, submit to the complainant a certification addressing the exercised right of access or

provide a reasoned denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202105284. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to DENTAL REY-GAR, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es